

Calendar Line 1

Case Name: Lynley Kerr Hogan v. Brian Bernasconi et al.

Case No.: 23CV417765

At issue is a special motion to strike all causes of action alleged against defendant Catherine Somers (Somers) in the operative second amended complaint. (Code Civ. Proc., § 425.16.) Notice is proper and the motion is opposed by Plaintiff Lynley Kerr Hogan (Plaintiff).

Plaintiff's original complaint, filed in June 2023, named only defendant Brian Bernasconi (Bernasconi) as a defendant. That complaint alleged five causes of action related to a podcast interview that was recorded in June 2023: (1) breach of contract (a contract between Plaintiff and Bernasconi); (2) conversion; (3) defamation; (4) harassment; and (5) "negligent and intentional emotional distress." Bernasconi's demurrer to that complaint, which was not opposed by Plaintiff, was heard by the court (Judge Chung) in March 2024. Judge Chung overruled the demurrer to the first, second, and third causes of action, and sustained the demurrer to the fourth and fifth causes of action with leave to amend.

Plaintiff's first amended complaint (FAC), filed in April 2024, alleged four causes of action against Bernasconi (again the only defendant): (1) breach of contract; (2) conversion; (3) defamation; and (4) intentional infliction of emotional distress. The harassment claim was abandoned. Bernasconi moved for a protective order, which was granted and issued in late 2024. The order required Bernasconi to provide a copy of the recording of the podcast to Plaintiff. The order continued that the recording "and any materials created based on same, including but not limited to, excerpts of the podcast, summaries of the podcast, oral recitations of the podcast (hereafter referred to as the 'Protected Materials'), shall be used by Plaintiff for the sole purpose of preparation for trial in this case, the trial itself, or for purposes of settlement and shall not be used at any time for any other purpose." (Protective Order, filed 10/8/24, ¶¶ 1, 2.) The court takes judicial notice of the protective order on its own motion. (Evid. Code, § 452, subd. (d).)

The court denied Plaintiff's motion for leave to file a second amended complaint (SAC) without prejudice in May 2025, in part due to concerns about a potential conflict between the proposed SAC and the protective order. A second motion for leave to file a SAC was granted in November 2025. The operative SAC was filed that same month. The SAC alleges eight causes of action: (1) breach of contract; (2) conversion; (3) defamation—slander per se; (4) defamation—slander per quod; (5) violation of the Unruh Civil Rights Act; (6) violation of the Tom Bane Civil Rights Act; (7) violation of the Ralph Civil Rights Act; and (8) intentional infliction of emotional distress. The SAC adds Somers as a defendant for the first time, adding her to the first, second, fourth, fifth, sixth, seventh, and eighth causes of action. There are no exhibits attached to the SAC and it lacks paragraph numbers.

LEGAL STANDARD FOR ANTI-SLAPP MOTIONS

Code of Civil Procedure section 425.16 (section 425.16) authorizes a person to bring a special motion to strike allegations "arising from any act . . . in furtherance of [his or her] right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue." (§ 425.16, subd. (b)(1).) The special motion to strike is also

referred to as an “anti-SLAPP” motion (standing for “strategic lawsuit against public participation”).

Courts evaluate anti-SLAPP motions using a two-step analysis. (*Country Side Villas Homeowners Assn. v. Ivie* (2011) 193 Cal.App.4th 1110, 1116.) “First, the moving defendant must identify ‘all allegations of protected activity’ and show that the challenged claim arises from that activity.” (*Bel Air Internet, LLC v. Morales* (2018) 20 Cal.App.5th 924, 934, citations omitted.) “Second, if the defendant makes such a showing, the ‘burden shifts to the plaintiff to demonstrate that each challenged claim based on protected activity is legally sufficient and factually substantiated.’ Without resolving evidentiary conflicts, the court determines ‘whether the plaintiff’s showing, if accepted by the trier of fact, would be sufficient to sustain a favorable judgment.’” (*Ibid.*)

First Step: Protected Activity

“A defendant meets his or her burden on the first step of the anti-SLAPP analysis by demonstrating the acts underlying the plaintiff’s cause of action fall within one of the four categories spelled out in [Code of Civil Procedure] section 425.16, subdivision (e).” (*Collier v. Harris* (2015) 240 Cal.App.4th 41, 50-51 (*Collier*)). Examples of protected activity include:

(1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

(§ 425.16, subd. (e).) “In deciding whether the ‘arising from’ requirement is met, a court considers ‘the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.’” (*Peregrine Funding, Inc. v. Sheppard Mullin Richter & Hampton LLP* (2005) 133 Cal.App.4th 658, 670.)

Second Step: Probability of Prevailing

The plaintiff meets its burden of showing a probability of prevailing by demonstrating “‘that the [challenged claims are] both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.’” (*Soukup v. Law Offices of Herbert Hafif* (*Soukup*) (2006) 39 Cal.4th 260, 291, quoting *Matson v. Dvorak* (1995) 40 Cal.App.4th 539, 548.) The “plaintiff need only establish that his or her claim has ‘minimal merit’ [citation] to avoid being stricken as a SLAPP.” (*Ibid.*)

“Courts have described this procedure as a ‘motion for summary judgment in “reverse.”’ Rather than requiring the defendant to defeat the plaintiff’s pleading by showing it is legally or factually meritless, the motion requires the plaintiff to demonstrate that he possesses a legally sufficient claim which is “substantiated,” that is, supported by competent, admissible evidence.’ [Citations.] Consistent with this summary-judgment-like procedure, the court

‘must draw all reasonable inferences from the evidence in favor of [the party opposing the anti-SLAPP motion].’ ” (*Area 55, LLC v. Nicholas & Tomasevic, LLP* (2021) 61 Cal.App.5th 136, 152 (*Area 51*).)

A plaintiff must show that there is admissible evidence that, if credited, would be sufficient to sustain a favorable judgment. (*McGarry v. University of San Diego* (2007) 154 Cal.App.4th 97, 108.) While the burden on the second prong belongs to the plaintiff, in determining whether a party has established a probability of prevailing on the merits of his or her claims, a court considers not only the substantive merits of those claims, but also all defenses available to them. (*Traditional Cat Assn., Inc. v. Gilbreath* (2004) 118 Cal.App.4th 392, 398.) Affidavits or declarations not based on personal knowledge, or that contain hearsay or impermissible opinions, or that are argumentative, speculative, or conclusory, are insufficient to show a “probability” that the plaintiff will prevail. (*Gilbert v. Sykes* (2007) 147 Cal.App.4th 13, 26 (*Gilbert*); *Dwight R. v. Christy B.* (2013) 212 Cal.App.4th 697, 714 (*Dwight R.*)). On the second step of the anti-SLAPP analysis, a plaintiff seeking to demonstrate the merit of the claim may not rely solely on its complaint, even if verified; instead, its proof must be made upon competent admissible evidence. (*Monster Energy Co. v. Schechter* (2019) 7 Cal.5th 781, 788.) In order to demonstrate a probability of prevailing, the plaintiff must also produce admissible evidence sufficient to overcome any privilege or defense the defendant has asserted. (*Flatley v. Mauro* (2006) 39 Cal.4th 299, 323 (*Flatley*); *Bergstein v. Stroock & Stroock & Lavan LLP* (2015) 236 Cal.App.4th 793, 819-821 (*Bergstein*).)

DISCUSSION

Somers’s special motion to strike the portions of the SAC brought against her is granted as follows. Because Somers was added as a defendant for the first time in the SAC, her motion is timely under Code of Civil Procedure section 425.16, subdivision (f).

First Prong

The “any other conduct” language in section 425.16, subdivision (e)(4) applies to even private communications concerning issues of public interest; no public forum is required. (*Hailstone v. Martinez* (2008) 169 Cal.App.4th 728, 736.) The conduct must be “in connection with a public issue or an issue of public interest.” “The term ‘issue of public interest’ is construed broadly in the anti-SLAPP context. [Citation.] An issue of public interest is ‘any issue in which the public is interested.’ [Citation.] The issue does not need to be ‘“significant” ’ to be covered by the anti-SLAPP statute.” (*Daniel v. Wayans* (2017) 8 Cal.App.5th 367, 386.) In *FilmOn.com, Inc. v. DoubleVerify, Inc.* (2019) 7 Cal.5th 133 (*FilmOn*), the Supreme Court set forth a two-step test for evaluating the nexus between a statement and an issue of public interest: “First, we ask what ‘public issue or [] issue of public interest’ the speech in question implicates—a question we answer by looking to the content of the speech.” (*Ibid.*, quoting Code Civ. Proc., § 425.16, subd. (e).) “Second, we ask what functional relationship exists between the speech and the public conversation about some matter of public interest.” (*Id.* at pp. 149–50.) “It is at the latter stage that context proves useful.” (*Id.* at p. 150.)

Somers has satisfied the first prong of the analysis. Somers’s declaration in support of the motion, and the SAC itself, confirm that all causes of action alleged against Somers arise from activity protected under Code of Civil Procedure section 425.16, subdivision (e)(4)—

namely Plaintiff's agreement to participate in a podcast interview that was to be available to the public concerning matters of interest to the local community in Los Gatos, California, including Plaintiff's participation in Los Gatos Town Council Meetings. Plaintiff identifies herself in the SAC as a "regular public speaker at Los Gatos Town Council meetings." (SAC, p. 2:13-16.) The SAC alleges Plaintiff was invited to the podcast for "an uncensored platform to share her story," but that Bernasconi instead "shouted, cursed, interrupted, called Plaintiff names, and made derogatory remarks about Plaintiff's race, religion, economic status, and conservative associations." (SAC, p. 4:16-18, 5:1-10.) Somers declares that the podcast interview addressed "Plaintiff's public activities at Town Council meetings and her involvement in local controversies that had been the subject of prior litigation and public discussion in the Los Gatos community." (Somers dec., filed 1/23/26, ¶ 7.) The action involves an issue of local public interest. Somers's declaration, and the SAC itself, establish that the *FilmOn* two-step test is satisfied here.

Every cause of action alleged against Somers in the SAC is at least a "mixed" causes of action subject to the anti-SLAPP statute. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 396 ["When relief is sought based on allegations of both protected and unprotected activity, the unprotected activity is disregarded at this stage."].) So-called "mixed" causes of action are still subject to an anti-SLAPP motion.

Second Prong

On the second prong of the analysis, the burden shifts to Plaintiff to demonstrate that each cause of action in the SAC alleged against Somers is both "legally sufficient" (meaning sufficiently pleaded against Somers) and supported by admissible evidence. (See *Area 51*, *supra*, 61 Cal.App.5th at p. 152.) Plaintiff cannot rely solely on the SAC to make this showing, she must submit competent admissible evidence. (*Monster Energy*, *supra*, 7 Cal.5th at p. 788.) Plaintiff fails to meet that burden. The only evidence submitted in opposition to the motion is a declaration from Plaintiff authenticating four attached exhibits (labeled A through D). Exhibit A is identified as a transcript of the podcast recording prepared by Plaintiff. Its submission violates the protective order. Exhibit B is a copy of a text message exchange between Plaintiff and Somers. Exhibit C is a purported transcript of a recorded conversation between Plaintiff and non-party Lee Fagot. Exhibit D consists of copies of emails from Lee Fagot. None of these exhibits provide support for the causes of action in the SAC as alleged against Somers. The conclusory statements in Plaintiff's declaration also fail to provide support for the causes of action as alleged against Somers. Again, declarations not based on personal knowledge, or that contain hearsay or impermissible opinions, or that are argumentative, speculative, or conclusory, are insufficient to show a "probability" that the plaintiff will prevail. (*Gilbert*, *supra*, 147 Cal.App.4th at p. 26; *Dwight R.*, *supra*, 212 Cal.App.4th at p. 714.)

The March 7, 2024 order on the demurrer to the original complaint does not suggest that any cause of action alleged against Somers is sufficiently stated. Somers was not named as a defendant in the original complaint. At most, the demurrer order stands for the proposition that the first, second, and third causes of action (the causes of action for which the demurrer was overruled), adequately stated causes of action against *Bernasconi* as then alleged. The order cannot be construed as providing any support for the causes of action newly added in the SAC, nor for any causes of action alleged against Somers.

The SAC alleges that Bernasconi deleted the podcast recording (even though the record in this case shows that Plaintiff was later given a copy of the recording of the podcast pursuant to a protective order). The SAC does not allege that this deletion breached any express term of the supposedly written contract. Even as currently pleaded, it fails to state a breach of any identified written contract term by Somers.

Plaintiff also fails to respond to defenses raised by Somers in her motion, further demonstrating that Plaintiff cannot show a probability of prevailing. (*Flatley, supra*, 39 Cal.4th at p. 323; *Bergstein, supra*, 236 Cal.App.4th at pp. 819-821.) Every cause of action in the SAC alleged against Somers is based on events occurring in June 2023. Defamation claims are subject to a one-year statute of limitations. (Code Civ. Proc., § 340, subd. (c).) Because Somers was not added as a defendant in this case until November 13, 2025 when the SAC was filed, the fourth cause of action is time-barred as brought against her.

“The general rule is that an amended complaint that adds a new defendant does not relate back to the date of filing the original complaint and the statute of limitations is applied as of the date the amended complaint is filed, not the date the original complaint is filed.” (*Woo v. Superior Court* (1999) 75 Cal.App.4th 169, 176 (*Woo*).) “A recognized exception to the general rule is the substitution under section 474 of a new defendant for a fictitious Doe defendant named in the original complaint as to whom a cause of action was stated in the original complaint. If the requirements of section 474 are satisfied, the amended complaint substituting a new defendant for a fictitious Doe defendant filed after the statute of limitations has expired is deemed filed as of the date the original complaint was filed. Among the requirements for application of the section 474 relation back doctrine is that the new defendant in an amended complaint be substituted for an existing fictitious Doe defendant named in the original complaint.” (*Ibid.*, internal citations omitted.) The SAC does not satisfy the requirements of Code of Civil Procedure section 474. And the prior pleadings in this case establish that Somers’s identity was always known to Plaintiff. None of the causes of action alleged against Somers in the SAC relate back to the original complaint.

It is not necessary to address every cause of action alleged against Somers because Plaintiff failed to meet her burden on the second prong of the anti-SLAPP statute. But the court will briefly address them to demonstrate that Plaintiff has not demonstrated a probability of prevailing on any cause of action alleged against Somers.

First Cause of Action—Breach of Contract

To properly state a breach of contract claim, a plaintiff must allege: (1) the existence of a (valid) contract; (2) Plaintiff’s performance or excuse for nonperformance; (3) Defendant’s breach, and; (4) damage to Plaintiff resulting from that breach. (*Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 228.)

For more than two years, Plaintiff’s complaints consistently alleged that the only parties to the allegedly written contract were Bernasconi and herself. Somers was added as a defendant for the first time in the SAC. The terms of the allegedly written contract are set out on page 4 of the SAC. The first cause of action fails to describe any breach of these terms by Somers, much less any damage to Plaintiff proximately caused by breach of the terms by Somers. Plaintiff has not demonstrated a probability of prevailing against Somers on this cause of action.

Second Cause of Action—Conversion

Conversion is the wrongful exercise of dominion over the property of another. The elements of a conversion claim are: (1) the plaintiff's ownership or right to possession of the property; (2) the defendant's conversion by a wrongful act or disposition of property rights; and (3) damages. (*Lee v. Hanley* (2015) 61 Cal.4th 1225, 1240.)

Assuming for purposes of argument that the second cause of action adequately alleges Plaintiff's ownership of the recording, it fails to allege a conversion by Somers. The only act of conversion alleged in the second cause of action is the deletion of the original recording. And the SAC specifically alleges several times that it was Bernasconi, not Somers, who deleted the recording. "Where a pleading includes a general allegation, such as an allegation of an ultimate fact, as well as specific allegations that add details or explanatory facts, it is possible that a conflict or inconsistency will exist between the more general allegation and the specific allegations." (*Perez v. Golden Empire Transit Dist.* (2012) 209 Cal.App.4th 1228, 1235.) "To handle these contradictions, California courts have adopted the principle that specific allegations in a complaint control over an inconsistent general allegation." (*Id.* at pp. 1235–1236.) "Under this principle, it is possible that specific allegations will render a complaint defective when the general allegations, standing alone, might have been sufficient." (*Id.* at p. 1236.) Plaintiff has not demonstrated a probability of prevailing against Somers on this cause of action.

Fourth Cause of Action—Defamation

The fourth cause of action fails to describe any defamatory acts taken by Somers. And the fourth cause of action became time-barred as alleged against anyone other than Bernasconi more than a year before the SAC was filed. Plaintiff has not demonstrated a probability of prevailing against Somers on this cause of action.

Fifth Cause of Action—Unruh Civil Rights Act

Statutory causes of action must be pleaded with particularity. (*Lopez v. Southern California Rapid Transit District* (1985) 40 Cal.3d 780, 795; *Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790.) When a statutory cause of action is alleged, "the plaintiff must set forth facts in his complaint sufficiently detailed and specific to support an inference that each of the statutory elements of liability is satisfied. General allegations are regarded as inadequate." (*Mittenhuber v. City of Redondo Beach* (1983) 142 Cal.App.3d 1, 5.) As pleaded in the SAC, the fifth cause of action does not meet this standard.

In addition, the Unruh Act is a public accommodations statute that focuses on discriminatory behavior by business establishments. (*Stamps v. Super. Ct.* (2006) 136 Cal.App.4th 1441, 1452.) "The Act expresses a state and national policy against discrimination on arbitrary grounds." (*Angelucci v. Century Supper Club* (2007) 41 Cal.4th 160, 167.) "Its provisions were intended as an active measure that would create and preserve a nondiscriminatory environment in California business establishments by 'banishing' or 'eradicating' arbitrary, invidious discrimination by such establishments." (*Ibid.*) "The Act stands as a bulwark protecting each person's inherent right to 'full and equal' access to 'all business establishments.'" (*Ibid.*) Somers is a defendant in this case only in her individual

capacity. Somers is not a business establishment. “LG PodCats,” the apparent business entity referenced in the SAC, is not a defendant in this case. Plaintiff has not demonstrated a probability of prevailing against Somers on this cause of action.

Sixth Cause of Action—Tom Bane Civil Rights Act

This is also a statutory cause of action that is not pleaded with sufficient particularity in the SAC. The crux of a Bane Act claim is that the defendant, by the specified improper means (i.e., “threats, intimidation or coercion”), tried to or did prevent the plaintiff from doing something he or she had the right to do under the law or to force the plaintiff to do something that he or she was not required to under the law. (*Cornell v. City and County of San Francisco* (2017) 17 Cal.App.5th 766, 791-792.) The sixth cause of action mentions Somers once: “Bernasconi’s shouting, cursing, interruptions, false accusations, name-calling, derogatory remarks including ‘White Christian Nationalist,’ and Somers’ acquiescence, were motivated by Plaintiff’s race, religion, and associations, unlike respectful LG PodCats interviews with others, mirroring Zamora’s hate crime.” (SAC, p. 10:4-8.) That isolated reference does not state a cause of action against Somers. Plaintiff has not demonstrated a probability of prevailing against Somers on this cause of action.

Seventh Cause of Action—Ralph Civil Rights Act

This is another statutory cause of action that Plaintiff has not alleged with the required particularity. Civil Code section 51.7 “broadly provides that all persons have the right to be free from violence and intimidation by threat of violence based on, among other things, race, religion, ancestry, national origin, political affiliation, sex, or position in a labor dispute.” (*Stamps v. Superior Court* (2006) 136 Cal.App.4th 1441, 1146.) “Under the Ralph Act, a plaintiff must establish the defendant threatened or committed violent acts against the plaintiff or their property, and a motivating reason for doing so was a prohibited discriminatory motive, or that defendant aided, incited, or conspired in the denial of a protected right.” (*Gabrielle A. v. County of Orange* (2017) 10 Cal.App.5th 1268, 1291.) The seventh cause of action fails to describe any such behavior by Somers. Plaintiff has not demonstrated a probability of prevailing against Somers on this cause of action.

Eighth Cause of Action—Intentional Infliction of Emotional Distress

“A cause of action for intentional infliction of emotional distress exists when there is (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. A defendant’s conduct is outrageous when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. And the defendant’s conduct must be intended to inflict injury or engaged in with the realization that injury will result. Liability for intentional infliction of emotional distress does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. If properly pled, a claim for sexual harassment can establish the outrageous behavior element of a cause of action for intentional infliction of emotional distress. With respect to the requirement that the plaintiff show emotional distress, this court has set a high bar. Severe emotional distress means emotional distress of such a substantial quality or enduring quality that no

reasonable [person] in civilized society should be expected to endure it.” (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-1051, internal quotations and citations omitted.)

“[T]he trial court initially determines whether a defendant’s conduct may reasonably be regarded as so extreme and outrageous as to permit recovery. Where reasonable men can differ, the jury determines whether the conduct has been extreme and outrageous to result in liability. Otherwise stated, the court determines whether severe emotional distress can be found; the jury determines whether on the evidence it has, in fact, existed.” (*Plotnik v. Meihaus* (2012) 208 Cal.App.4th 1590, 1614.) Conduct that merely hurts another person’s feelings is not enough. (*Cochran v. Cochran* (1998) 65 Cal.App.4th 488, 496.) Conduct is not outrageous simply because it is tortious, criminal, or intended to cause distress. (*McMahon v. Craig* (2009) 176 Cal.App.4th 1502, 1517.)

The eighth cause of action fails to describe any alleged conduct by Somers that would support a cause of action for intentional infliction of emotional distress against her. Plaintiff has not demonstrated a probability of prevailing against Somers on this cause of action.

ATTORNEY FEES

The prevailing defendant on a special motion to strike “shall be entitled” to recover his or her attorney fees and costs incurred in bringing the motion. (Code Civ. Proc., § 425.16, subd. (c).) The purpose of this fee-shifting provision is both to discourage meritless lawsuits and to provide financial relief to the SLAPP lawsuit victim. “[A]ny SLAPP defendant who brings a successful motion to strike is entitled to mandatory attorney fees.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.)

Somers’s motion includes a request for attorney fees. Somers is a prevailing defendant. But the fee request is denied because Somers is self-represented. “[B]y definition, the term ‘attorney fees’ implies the existence of an attorney-client relationship, i.e., a party receiving professional services from a lawyer.” (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1092.) “Cases that have allowed the recovery of attorney fees under the anti-SLAPP statute are similarly marked by the existence of an attorney-client relationship. This decisional authority and the plain language of section 425.16, subdivision (c) support the conclusion that the commonly understood definition of attorney fees applies with equal force to section 425.16 and a prevailing defendant is entitled to recover attorney fees if represented by counsel.” (*Ramona Unified School Dist. v. Tsiknas* (2005) 135 Cal.App.4th 510, 524, internal citations omitted; see also *Taheri Law Group v. Evans* (2008) 160 Cal.App.4th 482, 494 “[A] party, whether or not he is an attorney, who is not represented by counsel and who litigates an anti-SLAPP motion on his own behalf may not recover attorney fees under the statute.”].)

CONCLUSION

Defendant Somers’s special motion to strike the SAC’s first, second, fourth, fifth, sixth, seventh, and eighth causes of action as alleged against her is granted.

Somers’s request for attorney fees is denied.

The trial setting conference scheduled for July 14, 2026, at 11:00 a.m. in Department 10 remains as set. Plaintiff and defendant Bernasconi are ordered to meet and confer in

advance of the trial setting conference to determine two or three trial dates that are nine or 10 months after the trial setting conference.

The court will prepare the order.

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Calendar Lines 2 and 3

Case Name: Aaron Trout et al. v. Jose Paz-Leja et al.

Case No.: 24CV443761

This is a lawsuit brought by plaintiffs Aaron Trout and Anastasia Destiny Chavez (Plaintiffs) arising from an assault and battery by individual defendants Jose Paz-Leja, Eduardo Paz-Leja, and Eduardo Paz-Garcia (collectively, individual defendants) that occurred in a parking lot at Levi's Stadium in Santa Clara County after a soccer game in September 2022.

Plaintiffs filed the original complaint in July 2024. In addition to the individual defendants, the complaint named as defendants the City of Santa Clara, Santa Clara Stadium Authority (collectively, City Defendants); the DeBartolo Corporation, Forty Niners Football Company LLC, Forty Niners SC Stadium Company LLC, Forty Niners Stadium Management Company LLC, SI 41, LLC, The Sobrato Organization, LLC, Citrix Systems, Inc. (collectively, Stadium Defendants), and Landmark Event Staffing Services, Inc.

The original complaint alleged six causes of action: (1) negligence; (2) negligent hiring, retention and supervision; (3) premises liability; (4) dangerous condition of public property; (5) assault; and (6) battery. Different groups of defendants demurred to the complaint in 2025. The earliest filed, a demurrer by the City Defendants to the first, second, and fourth causes of action, was heard by the court (Judge Chung) in September 2025. The court sustained the demurrer to the first and second causes of action with leave to amend because they failed to state any statutory basis for being brought against public entities. The court overruled the demurrer to the fourth cause of action. The court's September 18, 2025 order stated that if an amended complaint were filed, it would render two other pending demurrers to the complaint moot. The court takes judicial notice of the prior demurrer order on its own motion. (Evid. Code, § 452, subd. (d).)

The operative first amended complaint (FAC) was filed in October 2025. The FAC alleges eight causes of action: (1) negligence; (2) negligence—public entities (“statutory negligence”); (3) negligent hiring, retention and supervision; (4) negligent hiring, retention and supervision—public entities; (5) premises liability; (6) dangerous condition of public property; (7) assault; and (8) battery.

At issue are two demurrers to the FAC, both opposed by Plaintiffs. The first is a demurrer by the City Defendants. The second is a demurrer by the Stadium Defendants.

REQUEST FOR JUDICIAL NOTICE

“Judicial notice may not be taken of any matter unless authorized or required by law.” (Evid. Code, § 450.) A precondition to judicial notice in either its permissive or mandatory form is that the matter to be noticed be relevant to the material issue before the court. (*Silverado Modjeska Recreation and Park Dist. v. County of Orange* (2011) 197 Cal.App.4th 282, 307.) Evidence Code section 453, subdivision (b), requires a party seeking notice to “[furnish] the court with sufficient information to enable it to take judicial notice of the matter.”

The Stadium Defendants request judicial notice of the purported number of events at Levi's Stadium prior to the assault on Plaintiffs, citing Evidence Code section 452, subdivision

(h). Subdivision (h) does not apply to that request. (*Gould v. Md. Sound Indus.* (1995) 31 Cal.App.4th 1137, 1145 [“Judicial notice under Evidence Code section 452, subdivision (h) is intended to cover facts which are not reasonably subject to dispute and are easily verified. These include, for example, facts which are widely accepted as established by experts and specialists in the natural, physical, and social sciences which can be verified by reference to treatises, encyclopedias, almanacs and the like or by persons learned in the subject matter.”].) In addition, a website maintained by the Stadium Defendants does not qualify as a source of reasonably indisputable accuracy. (*Jolley v. Chase Home Finance LLC* (2013) 213 Cal.App.4th 872, 889 [“[W]e know of no ‘official web site’ provision for judicial notice in California.”]; *Huitt v. Southern California Gas Co.* (2010) 188 Cal.App.4th 1586, 1605, fn. 10 [“Simply because information is on the Internet does not mean that it is not reasonably subject to dispute.”].) The request for judicial notice is denied.

LEGAL STANDARDS FOR DEMURRER

In ruling on a demurrer, the court accepts as true all properly pleaded material factual allegations but does not accept as true contentions, deductions or conclusions of fact or law. (*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253.) Code of Civil Procedure section 430.60 states that “[a] demurrer shall distinctly specify the grounds upon which any of the objections to the complaint, cross-complaint, or answer are taken. Unless it does so, it may be disregarded.” The California Rules of Court also require that the demurrer itself (distinct from a supporting memorandum) specify the target of any objection and the grounds. (See Cal. Rules of Court, rules 3.1103(c), 3.1112(a), 3.1320(a) [“Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses.”].)

Where a demurrer is to an amended complaint or cross-complaint, the court “may consider the factual allegations of prior complaints, which a plaintiff may not discard or avoid by making contradictory averments, in a superseding, amended pleading.” (*Berg & Berg Enterprises, LLC v. Boyle* (2009) 178 Cal.App.4th 1020, 1034, internal quotations omitted (*Berg & Berg*); see also *Doe v. United States Youth Soccer Assoc.* (2017) 8 Cal.App.5th 1118, 1122.)

The court cannot consider extrinsic evidence when ruling on a demurrer. This includes declarations. The court has considered the declarations from City Defendants’ counsel and from Stadium Defendants’ counsel only to the extent they describe the meet and confer efforts required by statute. Finally, “points raised in the reply brief for the first time will not be considered, unless good reason is shown for failure to present them before.” (*Proctor v. Vishay Intertechnology, Inc.* (2013) 213 Cal.App.4th 1258, 1273.)

CITY DEFENDANTS’ DEMURRER

The City Defendants demur to the FAC’s first, second, and fourth causes of action on the ground that they fail to state sufficient facts as brought against them. (See Notice of Demurrer and Demurrer.) The demurrer to the first cause of action is overruled because it is not alleged against the City Defendants.

Regarding the second and fourth causes of action, the demurrer to the prior version of these claims was sustained because (1) no statutory basis for them was alleged, and (2) they

were included in the same cause of action as the common law negligence claims made against other defendants. Neither the City Defendants nor Plaintiffs make any distinction between the second and fourth causes of action in their briefing on the instant demurrer; their arguments are presented as purportedly applicable to both causes of action.

As an initial matter, the immunity in Government Code section 845 does not provide a basis for sustaining a demurrer as to the second or fourth causes of action in the FAC. Neither cause of action can reasonably be described as based *solely* on a failure to establish or provide a police service, or a failure to provide sufficient police service. “[A] general demurrer may not be sustained, nor a motion for judgment on the pleadings granted, as to a portion of a cause of action.” (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, disapproved in part on another ground by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905.)

“Except as otherwise provided by statute ... [a] public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.” (Gov. Code, § 815, subd. (a).) Our Supreme Court has consistently confirmed that the purpose and effect of this statute is that the only liability for a public entity is “by statute.” (See, e.g., *Hampton v. County of San Diego* (2015) 62 Cal.4th 340, 347; *Guzman v. County of Monterey* (2009) 46 Cal.4th 887, 897 [“there is no common law tort liability for public entities in California”]; *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1127-1128 (*Zelig*) [reaffirming intent of Act to “confine potential governmental liability to rigidly delineated circumstances”].)

Direct “tort liability of public entities must be based on a specific statute declaring them to be liable, or at least creating some specific duty of care, and not on the general tort provisions of Civil Code section 1714. Otherwise, the general rule of immunity for public entities would be largely eroded by the routine application of general tort principles.” (*Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1183.) “As *Zelig* observed, “[t]he intent of the [Government Claims Act (§ 810 et seq.)] is not to expand the rights of plaintiffs in suits against governmental entities, but to confine potential governmental liability to rigidly delineated circumstances.”” (*Summerfield v. City of Inglewood* (2023) 96 Cal.App.5th 983, 999 (*Summerfield*), quoting *Zelig, supra*, 27 Cal.4th at p. 1127.)

Second Cause of Action (Negligence)

The second cause of action fails to state sufficient facts against the City Defendants. The only statutes cited in the second cause of action are Government Code sections 815.2 and 815.6. (See FAC at ¶¶ 77-87.) Government Code section 815.2 codifies vicarious liability against public entities; it is not an independent source of liability. Government Code section 815.6 provides that where “a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.” It is also not an independent source of liability.

The second cause of action fails to identify a specific statutory duty of care. The FAC alleges City Defendants “owed mandatory statutory duties,” but does not identify any. (FAC, ¶ 80.) It also fails to allege how the City Defendants breached that unidentified statutory duty.

Generic references to unspecified public safety measures, plans, or ordinances are insufficient, as is the incorporation by reference of prior general allegations. Plaintiffs' argument in opposition that they are not required to identify a specific statute or statutes making the City Defendants liable is incorrect. The *Summerfield* court rejected a plaintiff's argument, similar to Plaintiffs' argument here, "that 'there is no need to cite to any statute which creates liability.'" (*Summerfield, supra*, 96 Cal.App.5th at p. 999 [affirming dismissal following sustained demurrer; complaint alleged a city "breached its duty of care by maintaining a dangerous/unsafe condition and for its failure to warn of the dangers thereon"].) The demurrer to the second cause of action is sustained.

A plaintiff bears the burden of demonstrating that a defect identified on demurrer could be cured through amendment. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081; *Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145 ["The onus is on the plaintiff to articulate the 'specifi[c] ways' to cure the identified defect, and absent such an articulation, a trial or appellate court may grant leave to amend 'only if a potentially effective amendment [is] both apparent and consistent with the plaintiff's theory of the case. [Citation.]'"].) The opposition fails to meet that burden. Plaintiffs contend that they can "readily" "identify additional statutory enactments supporting their Government Code § 815.6" if leave to amend is granted. (Opposition, 12:12-17.) But leave to amend was previously granted to do just that. And neither the FAC nor the opposition to the instant demurrer identify any specific statutory duty. Further leave to amend this cause of action is DENIED. (Accord, *Summerfield, supra*, 96 Cal.App.5th at p. 1000–1001 [denying leave to amend where the plaintiffs did not "propose any new facts addressing the main issue of the FAC as we see it, i.e., how the City's alleged failure to install surveillance cameras in the parking lot of Darby Park amounts to a dangerous condition"].)

If Plaintiffs believe the assault was caused by some specified physical condition of public property, their exclusive means for pursuing that theory against the City Defendants is the sixth cause of action. Government Code section 835 "sets out the exclusive conditions under which a public entity is liable for injuries caused by a dangerous condition of public property," otherwise precluding any general negligence claim on this subject. (*Brown v. Poway Unified School Dist.* (1993) 4 Cal.4th 820, 829.) If Plaintiffs believe the assault was caused by the negligent hiring, retention, or supervision of an identified employee of the City Defendants, their exclusive means of pursuing that theory is the fourth cause of action.

Fourth Cause of Action (Negligent Supervision)

The fourth cause of action is a recognized claim that may be brought against public entities under Government Code section 815.2, if sufficiently alleged. Negligent supervision is usually framed as an issue of whether a business or organization adequately supervised a specific employee or agent who intentionally or negligently injured someone else. To be liable for negligent supervision, the defendant must typically be the employer of the specific individual alleged to have been negligently supervised. (*Jackson v. AEG Live, LLC* (2015) 233 Cal.App.4th 1156, 1187-1188.) "An employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee. Liability is based upon the fact that the employer knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes. To establish negligent supervision, a plaintiff must show that a person in a supervisory position over the actor had *prior* knowledge of the

actor's propensity to do the bad act.” (*Alexander v. Community Hospital of Long Beach* (2020) 46 Cal.App.5th 238, 264, internal citations omitted, emphasis in original.)

The FAC alleges that City Defendants acted negligently by: hiring or retaining unidentified personnel responsible for security, public safety, and crowd control; by failing to properly train unidentified employees in the “identification and management of dangerous, intoxicated, or aggressive individuals”; by failing to supervise unidentified “employees and contractors responsible for coordination and enforcement” within the parking lot; and by failing to enforce or required adherence to mandatory safety and operational standards. (FAC, ¶ 98.) The FAC alleges, on information belief, that City Defendants knew or should have known that “their employees and contracted personnel were incompetent, unqualified, or otherwise until to perform their assigned safety functions.” (FAC, ¶ 99.) The problem with the FAC is that it never identifies any actions by any specific individual employed by (or under contract with) City Defendants that committed a bad act against Plaintiffs. The court acknowledges that the specific name of any such individual may not be available to Plaintiffs at the pleading stage. But that would not prevent Plaintiffs from attributing the conduct to a Doe defendant and then substituting the true name after discovery. The fourth cause of action does not state a cause of action against City Defendants as currently pleaded.

The fourth cause of action also depends on allegations made only on information and belief. (See FAC at ¶¶ 24, 26, 51, 52, 56, and 99.) Even when it is permissible to allege an ultimate fact on the basis of information and belief, a party cannot simply include the phrase “information and belief” without more. (*Gomes v. Countrywide Home Loans, Inc.* (2011) 192 Cal.App.4th 1149, 1158-1159.) To plead an allegation on the basis of information and belief properly, a plaintiff must allege the facts or information that led it to infer or believe the truth of the ultimate factual allegation. (*Gomes, supra*, 192 Cal.App.4th at pp. 1158-59; see also *Brown v. USA Taekwondo* (2019) 40 Cal.App.5th 100, 1106 [“where factual allegations are based on information and belief, the plaintiff must allege ‘information that “lead[s] [the plaintiff] to believe that the allegations are true”’].) Allegations made on information and belief that lack supporting information are not accepted as true on demurrer.

C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861 (*Hart*) is distinguishable. The case involved legal issues not present here, such as the special relationship between a school district, its employees, and the district’s minor students. *Hart* determined that “a public school district may be vicariously liable under [Government Code] section 815.2 for the negligence of administrators or supervisors in hiring, supervising and retaining a school employee who sexually harasses and abuses a student.” (*Hart, supra*, at 879.) The instant case does not involve a school district’s custodial duty of care owed to minor students and a negligent failure to protect those students. The *Hart* decision also involved an identified employee who the plaintiff alleged had been negligently supervised or retained.

The opposition does not meet Plaintiffs’ burden to explain how this defect could be cured through amendment. But because there is still a reasonable possibility of amendment, the court will grant leave to amend the fourth cause of action.

STADIUM DEFENDANTS’ DEMURRER

The Stadium Defendants’ demurrer states that they challenge “Plaintiffs’ complaint and all causes of action therein,” while their Notice of Demurrer states that they challenge the first,

third, and fifth causes of action on failure to state sufficient facts grounds. (See Demurrer and Notice of Demurrer.)

First and Fifth Causes of Action (Negligence and Premises Liability)

The analysis of the first and fifth causes of action is the same because premises liability is a variety of negligence. “An action in negligence requires a showing that the defendant owed the plaintiff a legal duty, that the defendant breached the duty, and that the breach was a proximate or legal cause of injuries suffered by the plaintiff.” (*Ann M. v. Pacific Plaza Shopping Center* (1993) 6 Cal.4th 666, 673.) “The issue of whether a legal duty exists is an issue of law, not an issue of fact for the jury.” (*Kentucky Fried Chicken of California, Inc. v. Superior Court* (1997) 14 Cal.4th 814, 819.) The existence of a legal duty can be challenged on demurrer.

“Broadly speaking, premises liability alleges a defendant property owner allowed a dangerous condition on its property or failed to take reasonable steps to secure its property against criminal acts by third parties.” (*Delgado v. American Multi-Cinema, Inc.* (1999) 72 Cal.App.4th 1403, 1406.) “Premises liability is a form of negligence ... and is described as follows: The owner of premises is under a duty to exercise ordinary care in the management of such premises in order to avoid exposing persons to an unreasonable risk of harm. A failure to fulfill this duty is negligence.” (*Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619.)

There is also a separate notice requirement for premises liability: “An owner is liable for harm caused by a dangerous condition, of which the owner had actual or constructive knowledge. An injured plaintiff has the burden of showing that the owner had notice of the defect in sufficient time to correct it, but failed to take reasonable steps to do so.” (*Howard v. Omni Hotels Management Corp.* (2012) 203 Cal.App.4th 403, 431, citations omitted.) “Although no two accidents happen in the same way, to be admissible for showing notice to a landowner of a dangerous condition, evidence of another similar accident must have occurred under substantially the same circumstances.” (*Id.* at p. 432.)

“An owner of real property is ‘not the insurer of [a] visitor’s personal safety . . .’ However, an owner is responsible ‘for an injury occasioned to another by [the owner’s] want of ordinary care or skill in the management of his or her property . . .’ Accordingly, landowners are required ‘to maintain land in their possession and control in a reasonably safe condition,’ and to use due care to eliminate dangerous conditions on their property.” (*Taylor v. Trimble* (2017) 13 Cal.App.5th 934, 943-944, internal citations and quotations omitted.) “The proper test to be applied to the liability of the possessor of land . . . is whether in the management of his property he has acted as a reasonable man in view of the probability of injury to others.” (*Alcaraz v. Vece* (1997) 14 Cal.4th 1149, 1156.)

California law treats “third party criminal acts differently from ordinary negligence, and require[s] us to apply a heightened sense of foreseeability before we can hold a defendant liable for the criminal acts of third parties. There are two reasons for this: first, it is difficult if not impossible in today’s society to predict when a criminal might strike. Also, if a criminal decides on a particular goal or victim, it is extremely difficult to remove his every means for achieving that goal.” (*Wiener v. Southcoast Childcare Centers, Inc.* (2004) 32 Cal.4th 1138, 1149-1150, internal citations omitted.) “In each case . . . the existence and scope of a property

owner’s duty to protect against third party crime is a question of law for the court to resolve.” (*Casteneda v. Olsher* (2007) 41 Cal.4th 1205, 1213.) “In assessing whether the facts show ‘heightened foreseeability’ of third party crimes, our precedents have focused on whether there were prior similar incidents from which the property owner could have predicted the third party crime would likely occur, though we have recognized the possibility that ‘other indications of a reasonably foreseeable risk of violent criminal assaults’ could play the same role. (*Id.* at pp. 1220-1221; See also *Alvarez v. Jacmar Pacific Pizza Corp.* (2002) 100 Cal.App.4th 1190, 1207-1212 (*Alvarez*) [stating that “a duty to take affirmative action to control the wrongful acts of a third party will be imposed only where such conduct can be reasonably anticipated”; also stating that “[f]oreseeability is the crucial factor in determining the existence of this duty”; and that “the requisite degree of foreseeability rarely, if ever, can be proven in the absence of prior similar incidents of violent crime on the landowner’s premises”]; *Melton v. Boustred* (2010) 183 Cal.App.4th 521, 536-538 [stating “‘[i]n the case of criminal conduct by a third party, an extraordinarily high degree of foreseeability is required to impose a duty on the landowner’ for the resulting harm. . . . When the court engages ‘in any analysis of foreseeability, the emphasis must be on the specific, rather than more general, facts of which a defendant was or should have been aware.’”]; also stating that “in cases involving liability for third party criminal conduct, ‘the requisite degree of foreseeability rarely, if ever, can be proven in the absence of prior similar incidents.’ . . . Common sense is not the standard for determining duty. Nor is hindsight.”])

“[A] general knowledge of the *possibility* of violent criminal conduct is not in itself enough to create a duty under California law.” (*Williams v. Fremont Corner, Inc.* (2019) 37 Cal.App.5th 654, 668, emphasis in original.) “Knowing there is a general potential for rowdy or troublesome conduct by bar patrons, however, does not make the category of aggressive parking lot assaults reasonably foreseeable, any more so than the presumed awareness of previous assaults and robberies or problems with transients on the property establishes the foreseeability of a violent sexual assault.” (*Id.* at pp. 6711-672.) “To establish heightened foreseeability for third party criminal conduct, our authorities have consistently required *actual* knowledge—not constructive, inferential, or knowledge by association—to impose a burdensome legal duty.” (*Hanouchian v. Steele* (2020) 51 Cal.App.5th 99, 111 [affirming sustained demurrer].)

The first and fourth causes of action are both based on the alleged failure of the Stadium Defendants to protect Plaintiffs from third-party criminal activity—the assault alleged to have been committed by the individual defendants. (See FAC at ¶¶ 60-62, 71-72, 112, 114-115, and 121.) The FAC fails to allege sufficient facts to establish the existence of such a duty of care. The FAC fails to sufficiently identify any prior similar incidents of violent crime in the parking lot where Plaintiffs were assaulted. And the first and fifth causes of action largely depend upon allegations made only on information and belief, which are insufficient to support either cause of action. (See FAC at ¶¶ 18, 24, 26, 51, 52, 56, 62-68, 112, 114, 116, and 119.)

That these two causes of action also allege other failures (e.g., to maintain equipment or to train personnel) does not provide a basis for overruling the demurrer. “[P]laintiffs cannot attempt to circumvent governing decisional law about a commercial enterprise’s liability for criminal acts by recasting their claim in some other sub-theory of negligence. The dispositive issue remains the foreseeability of the criminal act. Absent foreseeability of the particular criminal conduct, there is no duty to protect the plaintiffs from that particular type of harm.”

(*Alvarez, supra*, 100 Cal.App.4th at 1212; see also *Rinehart v. Boys & Girls Club of Chula Vista* (2005) 133 Cal.App.4th 419, 431.)

The Stadium Defendants' demurrer to the first and fifth causes of action on the ground that they fail to state sufficient facts is sustained. The opposition to this demurrer fails to meet Plaintiffs' burden to show how the defect could be cured. But because this is the first pleading challenge by the Stadium Defendants to be heard in this case, the court will grant leave to amend.

Third Cause of Action (Negligent Supervision)

The Stadium Defendants' demurrer to this cause of action is sustained on the ground of failure to state sufficient facts for the same reason as the City Defendants' demurrer to the fourth cause of action is sustained. The FAC does not identify any bad act by any employee who was negligently hired or supervised by the Stadium Defendants. The opposition does not meet Plaintiffs' burden to explain how the identified defect could be cured through amendment. But because this is the first pleading challenge by the Stadium Defendants to be heard by the court, the court will grant leave to amend the third cause of action.

CONCLUSION

The Stadium Defendants' request for judicial notice is denied.

The City Defendants' demurrer to the FAC's first cause of action is overruled. Their demurrer to the second cause of action is sustained without further leave to amend. Their demurrer to the fourth cause of action is sustained with leave to amend.

The Stadium Defendants' demurrer to the FAC's first, third, and fifth causes of action is sustained with leave to amend.

Any amended pleading must be filed and served no later than August 7, 2026. The court does not grant leave to add any new parties or causes of action.

The court will prepare the order.

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